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Case Name: *JPMorgan Chase Bank, N.A. v. Don Nguyen*

Case No.: 25CV476443

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Don Nguyen (“Defendant”) moves to quash service of the Summons on the grounds that service of the summons was not properly effected upon Defendant, and therefore the Court lacks personal jurisdiction over Defendant. Notice of Motion (the “Motion”) at p. 2¹¹ (filed: Oct. 29, 2025).

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff JPMorgan Chase Bank, N.A. (“Plaintiff”) brings this civil action against defendant Don Nguyen (“Defendant”). On September 29, 2025, Plaintiff filed a Complaint against Defendant seeking damages of \$103,717.99 for unpaid payments on a credit account. On October 6, 2025, Plaintiff filed a Proof of Service of Summons of the Complaint.

Defendant’s Motion to quash service of Summons, filed on October 29, 2025, is now before the court.

On June 8, 2026, Plaintiff timely filed an Opposition to the Motion.

Legal Standard on Motion to Quash for Service of Summons

Code of Civil Procedure Section 418.10, subdivision (a)(1) authorizes Defendant to file a motion to quash service of Summons “on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “[A] motion to quash under section 418.10, subdivision (a)(1) is a limited procedural tool to contest personal jurisdiction over the defendant where the statutory requirements for service of process are not fulfilled.” (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390.) A registered process server’s declaration of service creates a rebuttable presumption that service was proper.

¹¹ The Court notes that the Motion filed by this pro se Defendant was not filed on proper pleading paper and does not contain line numbers, so the Court can cite only to page numbers of Defendant’s Motion papers here.

(*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Analysis of the Motion to Quash

California Code of Civil Procedure section 415.10 establishes that a “Summons may be served by personal delivery of a copy of the Summons and of the complaint to the person to be served.” (Code Civ. Proc., § 415.10.) Service by personal delivery is deemed complete at the time of such delivery. (*Ibid.*) The date upon which personal delivery is made must be on the Summons when it is delivered. (*Ibid.*) A Proof of Service by personal delivery must include an affidavit of the person making the service with the name of the person to whom the Summons was delivered, the time, place, and manner of service, and facts supporting the validity of service. (Code Civ. Proc., § 417.10 subd. (a).) All proofs of service must be made on a Judicial Council form. (Code Civ. Proc., § 417.10 subd. (f).) A Proof of Service completed by a registered process server or an independent contractor must list the county in which the person is registered and the registration number assigned to the person. (Code Civ. Proc., § 417.40.)

Here, the Proof of Service of Summons that Plaintiff filed on October 6, 2025, complies with all statutory requirements. The Proof of Service of Summons filed by Plaintiff was completed and signed by a registered process server and states the following: a “Summons; Complaint-Contract; Statement of Location/Venue; Civil Case Cover Sheet; Civil Lawsuit Notice; Alternative Dispute Resolution (ADR) Packet” was served on Don Nguyen by personal service at 2885 Urzi Court, San Jose, CA 95135-2030 on October 5, 2025 at 5:15 PM. (Proof of Service of Summons No. 25CV476443) The Proof of Service of Summons further states: “I delivered the documents to DON NGUYEN with identity confirmed by subject saying yes when named. The individual accepted service with direct delivery. The individual appeared to be a black-haired Asian male contact over 65 years of age, 5’6”-5’8” tall and weighing 140-160 lbs.” (*Ibid.*) Moreover, the Proof of Service of Summons includes the process server’s county of registration and registration number.

In his Motion papers, Defendant has not provided this court with any evidence or any reason to overcome the presumption that service was proper here. Defendant’s Declaration included in the Motion to quash states his position that he was never personally served and the person who was allegedly served was not him, a family member, or someone authorized to accept service on his behalf. The only evidence Defendant presents in support of this position is his claim that he “did not reside at [address listed on Proof of Service] (*sic*) at the time of alleged service, nor did I authorize anyone there to accept service for me.”

Defendant’s position is belied by the entwined facts that:

- The address listed on the Proof of Service is *2885 Urzi Court, San Jose, CA*.
- On the first page of Defendant’s own Motion to Quash, directly under his name and before his phone number, Defendant listed his own address as *2885 Urzi Court, San Jose, CA—the same address* listed on the Proof of Service.

So while Defendant “declared under penalty of perjury under the laws of the State of California” that he was not personally served and *he has never resided at the address listed on the Proof of Service*, the plain evidence in the record contradicts Defendant’s assertions and fails to establish that service was improper.

Conclusion and Order

Accordingly, Defendant’s Motion to Quash Service of the Summons is **DENIED**.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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